

on the part of their mother, in like manner as if they had been lawfully begotten of such mother.

§ 5. The kindred of any bastard, on the part of his mother, shall be entitled to the distribution of the personal estate of such bastard, in like manner as if such bastard had been lawfully begotten of his mother.

Ib. Sec. 2.
Bastard's
kindred to
have distri-
bution of his
estate.

§ 6. When two or more persons hold an estate, real or personal, jointly, and one joint-tenant dies before severance, his interest in said joint estate shall not survive to the remaining joint-tenant, or joint-tenants, but shall descend to, and be vested in, the heirs or other legal representatives of such deceased joint-tenant, in the same manner as if his interest had been severed and ascertained.

1818—(1)
Sec. 1.
Estate in
joint-tenan-
cy to descend
as though
severed.

NOTE.—Posthumous children, not provided for by will, are entitled to inherit as in case of intestacy.—See "Wills," § 6.

DISQUALIFYING LAWS.

§ 1. LAWS shall be made to exclude from office, from suffrage, and from serving as jurors, those who shall hereafter be convicted of bribery, perjury, forgery, or other high crimes or misdemeanors.

Con. Ala.
Art. 6.
Sec. 5.

§ 2. Any person, who shall be convicted of bribery, forgery, perjury, larceny, subornation of perjury, receiving stolen goods, knowing them to be stolen, or shall be convicted of stealing, or altering or defacing any record, with intent to defraud, shall be disqualified from holding or exercising any office under this state, from serving as a juror in any suit, from giving testimony before any judicial tribunal in this state, and from voting at any election therein.

1827—(33)
Sec. 1.
Certain
crimes dis-
qualify from
holding of-
fice, voting,
or serving as
juror or wit-
ness.

NOTE.—Disqualification for embezzlement by bank officers—See "Bank of the State of Alabama"—§ 19; Branch at Montgomery—§ 8; at Decatur—§ 7; at Mobile—§ 8; at Huntsville—§ 8. Assessors and collectors of taxes, convicted of making a false and fraudulent return, shall be thenceforth incapable of holding any office of profit, honor, or trust, within this state.—See "Taxes,"—§ 67. See Penal Code, ch. 3, § 12, and ch. 8, § 27 and 29.

DIVORCES.¹

§ 1. DIVORCES from the bonds of matrimony shall not be granted, but in cases provided for by law, by suit in chancery; and no decree

Con. Ala.
Art. 6.
Sec. 13.
Divorces.

¹ An Act, passed March 10, 1803, entitled "An Act concerning divorce and alimony," provides:—

SEC. 3. That divorces from the bond of matrimony, shall be decreed in cases where the parties are within the degrees prohibited by law, in cases where either party is naturally impotent, and in case of adultery in either of the parties, and also for wilful, continual and obstinate desertion, for the term of five years; but the decree or sentence of divorce, in such cases, shall not render illegitimate the issue born under such marriage.

SEC. 4. That divorces from the bond of matrimony shall also be decreed, where either of the parties had another wife or husband, living at the time of such second or other marriage, and that all marriages, where either of the parties shall have a